October 20, 2016

Bob DeVillez
9094 Hopewell Dr.
Rockford, MI 49341

RE: 43 North Fence Approval Request

Mr. DeVillez

We are in receipt of your request for approval to construct a privacy fence along the eastern side of your property on the southern portion of your Lot 15 in the 43 North neighborhood. After review of your proposed location, materials, and reason for the request (as attached) we are granting approval of your request based on the following conditions.

1) Per the 43 North Bylaws Section 6.1.5 allows for fences providing privacy for pool areas with prior approval from the Developer.
2) The request for privacy for a pool and hot tub area from Wolven Ave. is deemed to be a reasonable fit for this section. This approval is granted contingent on home owner removing only underbrush and no trees up to the fence location which is approved for 40 feet from Wolven Ave. to provide space for Kent County Road Commission Right of Way and ample wooded coverage from the Wolven Ave. street view. Home owner to leave in place all underbrush and trees between fence line and Wolven Ave. to satisfy the landscaping requirement.
3) The typical fencing material for approval has been black vinyl coated chain link fencing, white vinyl, or composite privacy fencing. In this instance the Developer is approving treated wood fencing as proposed due to the wooded nature of the suggested location and the home owners desire to have the fence blend with the background as much as possible. This approval is granted continent on the homeowner treating the fencing with a clear preservative annually. Also contingent on if at any point the fence becomes dilapidated or in poor repair the home owners association may require replacement of the full fence line to maintain the desirable aesthetic for the whole neighborhood.

This approval letter satisfies the prior Developer approval and allows the home owner to move forward with the proposed fencing. If there are any questions or further needs please let us know. I can be reached at jklaasen@jimtibbehomes.com or 616.633.8317

Thank you,

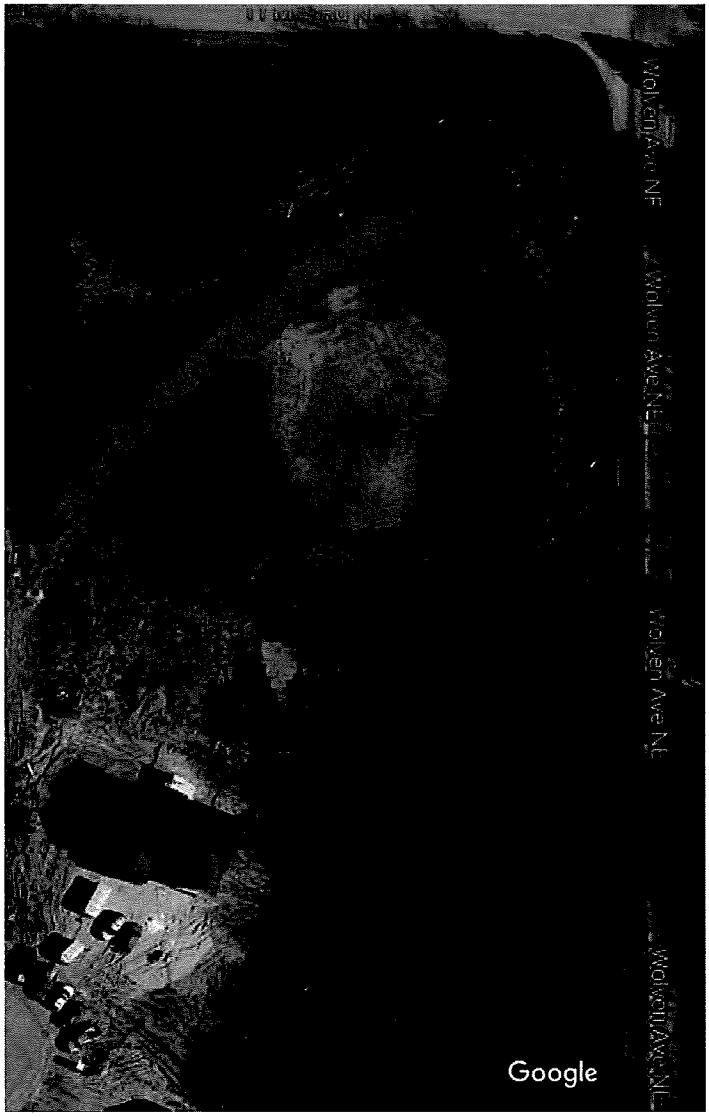
Jeff Klaasen
Wolven Investments LLC as Developer for 43 North

Jeff Klaasen

From: Bob DeVillez <bob@devillez.com>
Sent: Sunday, October 16, 2016 9:14 PM
To: Jeff Klaasen
Subject: Re: Question

Jeff,

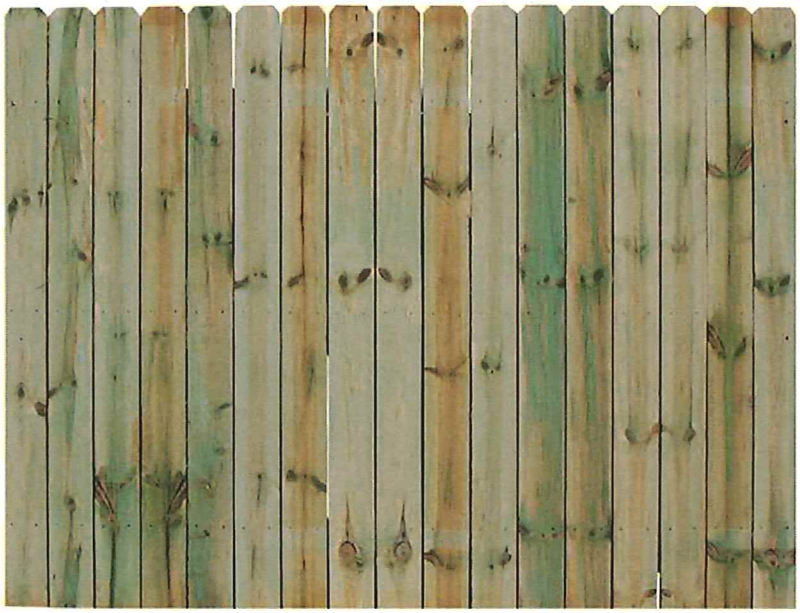
Below is an aerial shot of the property with a line where the fence would approximately be.



As you can see below this is a heavily wooded area, This is a view looking toward Wolven, the fence would be between the trees in the distance. With a fence I would be able to clean up the underbrush and make this a fun part of the property for my kids without creating better views from Wolven into our pool and hot tub area.

Below is look down the fence line with a representation of how the fence goes through the trees.

I would only remove shrubs and brush, no trees will be cut down. As far as materials go I would be using 6' high treated fencing. After the appropriate aging has past I will apply a colorless wood protector, no stains or anything unnatural. I really would like this to blend into the woods as much as a fence can.



Is there more I need to provide or does this need to be a more formal write up? I would be happy to walk the proposed area with the developer if that is required.

Thanks for your help.
Bob

On Thu, Oct 13, 2016 at 10:49 AM, Jeff Klaasen <jklaasen@jimtibbehomes.com> wrote:

> Hi Bob,
>
> If you want to mark up an aerial or site plan showing where you would propose the fence, you could hold off on the landscape plan until the developer is able to review location and existing woods/vegetation. It might be helpful to include some photos of the location and also outline what you would anticipate keeping.
>
> Thanks,

Jeff

From: Bob DeVillez [mailto:bob@devillez.com]
Sent: Tuesday, October 11, 2016 2:55 PM
To: Jeff Klaasen <jklaasen@jimtibbehomes.com>
Subject: Re: Question

Great, I'll draw something up.

I short explanation one what I want to accomplish first since it impacts what I write up. I am on lot 15 of the development which is on the corner of 11 mile and Wolven. To the East we see traffic from Wolven and they can see into our yard with pool and hot tub, granted it is through a lot of trees. I would like to put a fence essentially in the woods approx 30' off of Wolven (only on the southern half of the property line). This would allow some more privacy and sound reduction as well as give me the ability to clear out some of the undergrowth and make the wooded area a cool place for my kids to play. In that scenario what would you want to see in a landscape plan? The fence would only be seen from Wolven not the neighborhood and is in a heavily wooded area so I don't know how much landscaping, if any, there would be.

I hope I've explained this well enough.

Bob

On Tue, Oct 11, 2016 at 11:27 AM, Jeff Klaasen <jklaasen@jimtibbehomes.com> wrote:

> Good Morning Bob,
>
> I hope that you are doing well. I can definitely help you submit for approval on a privacy fence on your lot. The condominium bylaws in section 6.1.5 on page 9 and 10 require plans to be submitted for review. These plans would include a depiction of where the fence would be located on a site map, a plan on what the fence would be constructed of including a depiction of what it will look like, and also a landscape plan to ensure that there is an aesthetic appearance to the fence. If you are able to pull this info together and email over to me, I will submit for review and let you know their thoughts.
>
> Thanks!
>
> Jeff

-----Original Message-----
From: Lisa Quist [mailto:lquistre@gmail.com]
Sent: Thursday, October 6, 2016 4:54 PM
To: Bob DeVillez <bob@devillez.com>
Cc: Brad Quist <bquist@jimtibbehomes.com>; Jeff Klaasen <jklaasen@jimtibbehomes.com>
Subject: Re: Question

I will copy the developer on this and they can approve the fence.

Sent from my iPhone

> On Oct 6, 2016, at 4:38 PM, Bob DeVillez <bob@devillez.com> wrote:
>
> Since we don't have an association yet who would I talk with about getting approval to possibly put privacy a fence in the woods to the East of my house along Wolven? I'm thinking something well off the road so it would not be really that noticeable from Wolven and unseen from the neighborhood.
>
> Thanks,
> Bob